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FILED
COUNTY CLERK
2022 MAR 16 AM 8:49
WHATCOM COUNTY
WASHINGTON

THE SUPERIOR COURT OF THE STATE OF WASHINGTON
IN AND FOR THE COUNTY OF WHATCOM

MICHAEL SCANLON and JONATHAN WEISS, Plaintiffs, vs. CITY OF BELLINGHAM POLICE DEPARTMENT, CITY OF BELLINGHAM, and JOHN and JANE DOE 1-10, Defendants.	**NO.** 22-2-01596-37 **CITY OF BELLINGHAM'S AND BELLINGHAM POLICE DEPARTMENT'S ANSWER TO COMPLAINT FOR DAMAGES** Judge Lee Grochmal

COMES NOW Defendants, City of Bellingham ("City") and Bellingham Police Department ("BPD") by and through their undersigned attorneys of record, and answer Plaintiffs' complaint by admitting, denying, and alleging as set forth below. Each and every allegation of Plaintiffs' complaint not specifically admitted below is denied. The numbering below corresponds to the numbering in Plaintiffs' complaint.

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I. INTRODUCTION

1. Answering paragraph one, the Defendants admit the first two sentences. With reference to the third sentence, the Defendants deny instructing any employees to request an accommodation. The Defendants admit the fourth and fifth sentences. The Defendants deny the remaining sentences.

2. Plaintiffs' statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

3. Plaintiffs' statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

II. JURISDICTION AND VENUE

4. Admit.

5. Plaintiffs' statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

6. Admit.

7. Deny.

III. PARTIES

8. Deny.

9. The Defendants deny the first sentence and admit the second sentence.

10. Plaintiffs statement requires no response by the Defendants. To the extent a response is required, the Defendants deny.

11. Deny.

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[PLAINTIFFS' COMPLAINT OMITS ITEMS 12 - 22, ALTHOUGH PAGE NUMBERING IS IN CHRONOLOGICAL ORDER.]

IV. FACTS

23. Admit.

24. Deny.

25. Admit.

26. The Defendants deny Executive Order 2021-2 was issued in response to the Governor's Proclamation and admit the remainder.

27. Admit.

28. The Defendants admit the first sentence. The Defendants deny the second sentence.

29. Deny.

30. Admit.

31. The Defendants admit that the Plaintiffs were terminated but deny the remainder.

32. Admit.

33. Admit.

V. FIRST CAUSE OF ACTION

34. The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1 through 33 (included 12 – 22 omissions by Plaintiffs) of the Complaint

35. States a conclusion of law that requires no answer.

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36. Deny.

37. Deny.

38. Deny.

39. Plaintiffs' statement requires no response by the Defendants.

VI. SECOND CAUSE OF ACTION

40. The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1 through 39 (included 12 – 22 omissions by Plaintiffs) of the Complaint.

41. States a conclusion of law that requires no answer.

42. States a conclusion of law that requires no answer.

43. States a conclusion of law that requires no answer.

44. Deny.

45. States a conclusion of law that requires no answer.

VII. PRAYER FOR RELIEF

Plaintiffs' prayer for relief requires no response by the Defendants. To the extent a Response is required, the Defendants deny generally the relief requested.

VIII. RESERVATION OF RIGHTS

The City reserves the right to supplement or amend this answer, including the assertion of additional affirmative defenses, based upon further investigation and discovery into Plaintiffs' claims.

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IX. AFFIRMATIVE DEFENSES

The Defendants assert the following affirmative defenses and reserve the right to amend based on the discovery of additional facts:

A. The Defendants deny that they are in any manner responsible for Plaintiffs' alleged injuries and damages.

B. The Defendants have exercised reasonable and due care in all respects relative to the subject of this litigation.

C. Plaintiff has failed to state a claim upon which relief can be granted.

D. Plaintiffs cannot prove the necessary elements of any of their claims and causes of action.

E. The Defendants' actions were taken for legitimate, non-discriminatory, and non-retaliatory reasons.

F. Plaintiffs may have failed to mitigate damages, to the extent damages exist.

G. Plaintiffs' claims may be barred by the applicable statutes of limitations.

H. With regard to the claims brought under Title VII, Plaintiffs are precluded from recovering for any unlawful acts alleged to have occurred more than 300 days prior to filing their Charges of Discrimination.

I. Plaintiffs' claims against the Bellingham Police Department (BPD) may be barred because the BPD is not a separate entity capable of being sued.

J. At all times material to this action and the allegations set forth in the Complaint, Defendants acted lawfully and in good faith and without any intent to deny Plaintiffs any rights under federal, state or local law.

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K. Plaintiffs failed to adequately engage in the interactive process.

L. The accommodations Plaintiffs requested were unreasonable and/or posed undue hardship on Defendants.

M. The accommodations Plaintiffs requested were unreasonable, as they would have infringed on the rights and safety of other employees.

N. Plaintiffs' alleged damages were caused in whole or in part by Plaintiffs' own conduct.

O. Plaintiffs may have failed to exhaust their administrative remedies.

P. Service of process may have been insufficient.

REQUEST FOR RELIEF

The City requests the following relief:

1. Dismissal of Plaintiffs' complaint with prejudice.

2. Award of attorney's fees and costs to the City as allowed by law.

3. For such other and further relief as the Court deems just and proper.

Respectfully submitted this 16th day of March, 2023.

CITY OF BELLINGHAM

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